

Contract Agreement

SaaS Cybersecurity Contract with DataGuard Enterprises

Title: Software as a Service (SaaS) Agreement - Cybersecurity Solutions

Parties Involved:

This Agreement is entered into by and between:

1. Vendor: SecureSoft Solutions Inc. (hereinafter referred to as "Provider"), having its principal office at 123 Cyber Lane, Tech City, USA.
2. Customer: DataGuard Enterprises Ltd. (hereinafter referred to as "Customer"), having its principal office at 456 Security Blvd, Innovation Park, USA.

Preamble:

This SaaS Agreement outlines the terms under which the Provider will supply cybersecurity software and related services to the Customer. This Agreement is executed on March 31, 2025.

1. Definitions:

- "Services": Refers to the cybersecurity software suite including threat monitoring, incident response, and compliance reporting.
- "Data": Customer's digital assets, files, and information processed using the Services.
- "Service Level Agreement (SLA)": Document specifying service quality standards.
- "Critical Incident": An event causing complete disruption of cybersecurity monitoring or data loss.
- "Business Day": Any day excluding weekends and public holidays.

2. Scope of Services:

The Provider agrees to deliver comprehensive cybersecurity monitoring, threat detection, automated

Contract Agreement

incident responses, and monthly vulnerability assessments as outlined in the SLA.

- The software suite will include SecureNet Pro, ThreatWatch AI, and DataShield Guardian.
- Monthly security reports will be delivered to the Customer's IT department.

3. Service Level Agreement (SLA):

- Availability: Provider guarantees an uptime of 99.95% per month.
- Support: 24/7 support for critical incidents via dedicated hotline and email.
- Response Time:
 - Critical Issues: 1 hour or less.
 - Major Issues: 4 hours.
 - Minor Issues: 24 hours.
- Scheduled Maintenance: Will occur on the first Sunday of each month from 2:00 AM to 4:00 AM.

4. Pricing and Payment Terms:

- Subscription Fee: \$20,000 per annum, billed annually.
- Additional Features: Enhanced Threat Intelligence at \$5,000 per year.
- Payment Due: Within 30 days of invoice.
- Late Payment: A 2% interest per month on overdue balances.

5. Data Handling and Compliance:

- Compliance: The Provider ensures compliance with GDPR, CCPA, and local regulations regarding data protection.
- Data Storage: All customer data will be stored within secured, access-controlled data centers.
- Data Breach Notification: The Provider will notify the Customer within 24 hours of any data breach.
- Data Processing Agreement (DPA): The Provider will sign a DPA with the Customer upon request.

Contract Agreement

6. Customer Obligations:

- Proper Usage: The Customer shall use the Services in accordance with applicable laws and the Provider's Acceptable Use Policy.
- Access Control: The Customer is responsible for maintaining secure credentials and managing user access.
- Reporting Incidents: The Customer must report security incidents within 24 hours of discovery.

7. Limitations and Warranties:

- No Guarantee of Complete Security: The Provider does not warrant that the Services will be completely secure against all potential threats.
- Exclusion of Liability: The Provider shall not be liable for indirect, incidental, or consequential damages.
- Warranty Limitation: The Provider's liability is limited to the total fees paid under this Agreement.

8. Intellectual Property Rights:

- Ownership: The Provider retains all rights, title, and interest in the software, including all updates and upgrades.
- License Grant: The Customer is granted a non-exclusive, non-transferable license to use the software.
- Restrictions: The Customer shall not reverse-engineer, decompile, or attempt to extract source code.

9. Audit Rights:

- Audit Access: The Provider reserves the right to audit the Customer's use of the software to ensure

Contract Agreement

compliance.

- Audit Frequency: Audits will be conducted no more than twice per year, with prior notice.
- Data Integrity Verification: The Customer shall provide necessary data logs during the audit process.

10. Subcontracting and Assignment:

- Subcontracting: The Provider may subcontract parts of the service delivery but remains responsible for overall performance.
- Assignment: Neither party may assign this Agreement without prior written consent of the other party.

11. Data Retention and Deletion:

- Retention Policy: Customer data will be retained for up to 90 days post-contract termination.
- Data Deletion: Upon contract termination, the Provider will delete all customer data from active and backup systems.
- Customer Request: Data deletion can be expedited upon written request.

12. Governing Law and Jurisdiction:

- This Agreement shall be governed by the laws of the State of California.
- Dispute Resolution: Any disputes shall be settled through arbitration under the American Arbitration Association.
- Jurisdiction: All legal proceedings will take place in San Francisco, California.

13. Amendments and Changes:

- Modification: Any changes to this Agreement must be documented and signed by both parties.

Contract Agreement

- Change Control: Changes to services, pricing, or terms will be communicated at least 30 days prior to implementation.

14. Force Majeure:

- Exemption: Neither party shall be liable for delays due to events beyond their control, including natural disasters, acts of war, or government interventions.

15. Miscellaneous Provisions:

- Severability: If any clause of this Agreement is deemed unenforceable, the remainder will still be in effect.

- Entire Agreement: This document represents the complete and exclusive understanding between the parties.

- Signatures: The Agreement is signed by authorized representatives of both parties.

Signatures:

Provider Representative: John Smith, CTO of SecureSoft Solutions Inc. Date: _____

Customer Representative: Alice Johnson, CIO of DataGuard Enterprises Ltd. Date:
